VAWA Self-Petition: What to Expect

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Disclaimer: Educational information only, not legal advice. We are not a law firm and are not affiliated with USCIS, the U.S. Department of State or any government agency. Immigration law changes often; always check the official source and consider speaking with a licensed immigration attorney or a DOJ-accredited representative.

Your safety comes first. In danger? Call 911. National Domestic Violence Hotline (free, confidential): **1-800-799-7233**, TTY 1-800-787-3224, or text START to 88788.

VAWA lets certain survivors of battery or extreme cruelty by a U.S. citizen or permanent resident spouse, parent or adult child petition for themselves, without the abuser's knowledge or participation.

Key facts from official sources

- Certain abused spouses, children and parents of U.S. citizens or permanent residents may self-petition using Form I-360. [Source 1]
- USCIS handles VAWA cases under the confidentiality protections of federal law (8 U.S.C. § 1367). [Source 1]
- A self-petition can be filed without the abuser's knowledge, consent, or participation. [Source 1]

Commonly reported practice questions

Commonly reported practice questions: these are general topics people report being asked about. They are NOT an official USCIS or Department of State list. Officers may ask anything related to your case. Answer truthfully and consistently with your forms.

- Questions confirming the qualifying relationship and identity information in your petition.
- Questions about residence with the abuser and good-faith marriage, as described in your filing.
- Questions confirming facts in your personal statement. You may ask for a break at any time.

Document checklist

Always follow the list on your own interview notice or embassy instructions first.

- ☐ Safety plan first (the Hotline can help)
- ☐ Identity documents and proof of the relationship (e.g., marriage certificate)
- ☐ Evidence of residence together
- ☐ Evidence of abuse or extreme cruelty (e.g., protective orders, police or medical records, statements from shelters or counselors), where safe to obtain
- ☐ Evidence of good moral character as requested
- ☐ Your personal statement, prepared with an attorney or accredited representative

☐ A safe mailing address you control

Interview day tips

- Use a safe mailing address and a safe device.
- Work with an attorney, DOJ-accredited representative, or a domestic violence program experienced in VAWA.
- Keep copies somewhere the abuser cannot access.

Stay organized

Keep your documents and deadlines in one place with PathwayUS, an organizing tool (not legal help): mypathwayusa.com/landing

Sources

1 USCIS: Abused Spouses, Children and Parents: https://www.uscis.gov/humanitarian/abused-spouses-children-and-parents

2 USCIS: Form I-360: https://www.uscis.gov/i-360

3 National Domestic Violence Hotline: https://www.thehotline.org/

4 USCIS: Find Legal Services: https://www.uscis.gov/scams-fraud-and-misconduct/avoid-scams/find-legal-services

Contact: pnsglobalIlc@gmail.com · Sources checked 2026-10-16. Practice questions are general and not official.